

other sovereign state, each and every one declines to exercise by means of its Courts any of its territorial jurisdiction over the person of any sovereign or ambassador of any other state, or over the public property of any state which is destined to public use, or over the property of any ambassador, though such sovereign, ambassador, or property be within its territory, and, therefore, but for the common agreement, subject to its jurisdiction.

It is said, however, that there are authorities inconsistent with the view that this is a part of international law. The case of *The Santissima Trinidad* (1) is relied on. But, as was pointed out in the judgment in *Briggs v. The Light-ships* (2), the former case is one depending upon a well-known doctrine of the law of prize, viz., that property captured in breach of the laws of neutrality is held by the prize courts of the neutral state not to be lawful prize. In the case of the *United States v. Wilden* (3) it would be uncandid to say that there are not expressions of Story, J., which are in favour of the contention that the immunity from jurisdiction is confined to ships and materials of war. But in that case the right which was adverse to the United States Government was a possessory lien for general average. The remedy of the shipowner was in his own hands. He required no assistance from any process of any court, as would also be the case in a lien for freight. As a decision, therefore, the case is not in point, because the United States were plaintiffs voluntarily seeking the assistance of the Massachusetts tribunal. But it seems to us sufficient to say that we do not consider the observations of Story, J., to countervail effectually the arguments and decisions in the other cases which have been cited. There is then the opinion of the learned Judge of the Admiralty Division, expressed in the case of *The Charkieh*. (4) The decision is, of course, not in point, because the case was decided on the ground that the Khedive was not an independent sovereign. But there is a careful consideration in the judgment of the question whether the ship would have been liable to the jurisdiction of the Court, in proceedings in rem in respect of a collision, if the Khedive had been a sovereign prince. The conclusion is that she would have been. Such an opinion deserves

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(1) 7 Wheat. 283.
(2) 11 Allen (Mass.), 157.

(3) 3 Sumn. 308.
(4) Law Rep. 4 A. & E. 59.